

Jordan Avery Reyes

Name

118 Maple Street

Mailing Address

Helena, MT 59601

City

State

Zip Code

406-555-0142

Phone Number

jordan.reyes@example.org

E-mail Address (optional)

FORM A:

Use this form for Expungement
or Resentencing if you are
currently serving your sentence

☒ **MONTANA** FIRST **JUDICIAL DISTRICT COURT,** Lewis and Clark **COUNTY**

☐ **IN THE JUSTICE COURT OF** _____ **COUNTY, STATE OF**
MONTANA

☐ **IN THE MUNICIPAL OR CITY COURT OF** _____, **MONTANA**

In re the Expungement or Resentencing of
the Marijuana-Related Conviction of

Jordan Avery Reyes,

Petitioner.

Case No: _____

Petition for Expungement or
Resentencing of Conviction

I hereby petition this Court for resentencing or redesignation of the following conviction in accordance with the Montana Marijuana Regulation and Taxation Act (MMRTA).

Venue for this Petition is proper in this Court because this is the Court in which I was sentenced for this offense.

On or about 06/15/2018 (date), I was convicted of the following offense that I believe is eligible for resentencing or redesignation under the MMRTA:

- ☐ Criminal Distribution of Dangerous Drugs (marijuana),
in violation of § 45-9-101, MCA;
- ☒ Criminal Possession of Dangerous Drugs (marijuana),
in violation of § 45-9-102, MCA;
- ☐ Criminal Possession with Intent to Distribute (marijuana),
in violation of § 45-9-103, MCA;
- ☐ Criminal Production or Manufacture of Dangerous Drugs (marijuana),
in violation of § 45-9-110, MCA;
- ☐ Criminal Possession of Drug Paraphernalia (marijuana),
in violation of § 45-10-103, MCA;

- ☐ Manufacture or Delivery of Drug Paraphernalia (marijuana),
in violation of § 45-10-104, MCA;
- ☐ _____ (specify offense)

I am currently serving my sentence for this conviction.

I believe this conviction is eligible for ☐ expungement / ☐ resentencing as a
misdemeanor / ☐ resentencing as a civil infraction because _____

I ☐ am / ☐ am not requesting a hearing on this Petition.

I have filed the following documents along with this Petition:

- ☐ A copy of my criminal record from the Montana Department of Justice. *(required)*
- ☐ My Certificate of Service that indicates how I served copies of these
documents upon the County Attorney for the County in which I am filing this
Petition. *(required)*
- ☐ A copy of the Judgment or Sentencing Order for this conviction. *(recommended)*
- ☐ A proposed Order granting this Petition.
- ☐ Other: _____

Dated this _____ day of _____, 20____.

(date) (month) (year)

(your signature)

Jordan Avery Reyes

(print your name)

CERTIFICATE OF SERVICE

The undersigned hereby certifies that true and correct copies of the foregoing document were, this day, served upon the following individuals by U.S. Mail and/or e-mail and addressed as follows:

Lewis and Clark County Attorney

Name of County Attorney

100 Example Civic Avenue

Mailing Address

Suite 200

Mailing Address

Helena, MT 59601

City

State

Zip Code

406-555-0111

Phone Number

county-attorney@example.org

E-mail Address (optional)

Dated this _____ day of _____, 20____.

(date)

(month)

(year)

(your signature)

Jordan Avery Reyes

(print your name)

Jordan Avery Reyes

Name

118 Maple Street

Mailing Address

Helena, MT 59601

City

State

Zip Code

406-555-0142

Phone Number

jordan.reyes@example.org

E-mail Address (optional)

☒ **MONTANA** FIRST **JUDICIAL DISTRICT COURT, Lewis and Clark COUNTY**

☐ **IN THE JUSTICE COURT OF _____ COUNTY, STATE OF MONTANA**

☐ **IN THE MUNICIPAL OR CITY COURT OF _____, MONTANA**

In re the Expungement, Resentencing, or
Redesignation of the Marijuana-Related
Conviction of

Jordan Avery Reyes,

Petitioner.

Case No: _____

Proposed Order Granting

- ☐ Expungement of Conviction
☐ Resentencing of Conviction
☐ Redesignation of Conviction

Petitioner has requested ☐ Expungement / ☐ Resentencing / ☐ Redesignation of a criminal conviction pursuant to the Montana Marijuana Regulation and Taxation Act (MMRTA).

On or about _____ (date), Petitioner was convicted of the following offense:

- ☐ Criminal Distribution of Dangerous Drugs (marijuana),
in violation of § 45-9-101, MCA;
- ☐ Criminal Possession of Dangerous Drugs (marijuana),
in violation of § 45-9-102, MCA;
- ☐ Criminal Possession with Intent to Distribute (marijuana),
in violation of § 45-9-103, MCA;
- ☐ Criminal Production or Manufacture of Dangerous Drugs (marijuana),
in violation of § 45-9-110, MCA;
- ☐ Criminal Possession of Drug Paraphernalia (marijuana),
in violation of § 45-10-103, MCA;

☐ Manufacture or Delivery of Drug Paraphernalia (marijuana),
in violation of § 45-10-104, MCA;

☐ _____ (specify offense)

Petitioner is ☐ currently serving / ☐ has completed the sentence for this conviction.

On _____ (date), Petitioner served the County Attorney of
_____ County with the Petition. The County Attorney ☐ opposed
/ ☐ did not oppose this Petition.

This Court ☐ held / ☐ did not hold a hearing on this Petition.

IT IS THEREFORE ORDERED:

Pursuant to § 16-12-113(6), MCA, this Court GRANTS the Petition as follows:

☐ The above-described conviction is hereby EXPUNGED.

☐ The above-described conviction is hereby REDESIGNATED AS A MISDEMEANOR
OFFENSE, specifically: _____ ,

and Petitioner is RESENTENCED as follows: _____

☐ The above-described conviction is hereby REDESIGNATED AS A CIVIL

INFRACTION, specifically: _____ ,

and the conviction is redesignated as follows: _____

Petitioner shall sent a copy of this Order to the Department of Justice, along with any
necessary forms and fees to effectuate the ordered expungement, resentencing, or
redesignation.

Dated this _____ day of _____, 20____.
(date) (month) (year)

(Judge's signature)

REQUIRED ATTACHMENTS AND RECORD MATCHING

Attach the ACTUAL Montana DOJ criminal record before filing. The following facts are synthetic fixture inputs, not a criminal history report, judgment, certified record or court finding.

One conviction in this set: Criminal Possession of Dangerous Drugs (marijuana); MCA 45-9-102; original case DC-2018-001234; conviction 06/15/2018; currently serving on probation.

Sentencing court: district; Lewis and Clark County; Helena, Montana.

Participant: Jordan Avery Reyes; other names None; birth date 04/17/1991; 118 Maple Street, Helena, MT 59601.

Attach the actual judgment/sentencing order (recommended), an actually executed Certificate of Service (required), and the proposed order. Only mark Form A attachment boxes for documents actually included.

The fixture reports no other conviction to include in another set.

Current synthetic recipient information is for a diagnostic only. Actual service requires verification of the county attorney name and mailing/email address. All provided example addresses must be replaced by actual record-bound recipient facts for participant use.

PARTICIPANT INSTRUCTIONS - MMRTA CURRENTLY SERVING

CURRENTLY SERVING ONLY: Form A applies while the sentence is still being served, including probation or parole. File in the court that sentenced you: District, Justice, Municipal or City Court as shown in your records. A completed sentence belongs on Form B. One complete form set is required for EACH conviction, even when convictions occurred together. Incarceration alone requires attorney handoff. The diagnostic fixtures are not incarcerated. This packet does not select a remedy, compute a new sentence or author a public-safety argument.

PREPARE THE RECORD: obtain your Montana DOJ criminal record; Form A makes this a REQUIRED attachment. Search BOTH Montana Public Access Portals: District Courts and Courts of Limited Jurisdiction (Searches, Case Searches, By Party). Reconcile every discrepancy with the judgment and court record. Obtain the judgment or sentencing order, recommended with the court petition and needed for the DOJ stage if expungement is granted. Never treat the synthetic intake sheet as an actual official record.

LOCAL FILING AND FEES: use <https://courts.mt.gov/CourtLocator/> to contact the sentencing court clerk; confirm all local filing rules, filing method, copies, any required cover sheet and current fee before filing. The adopted May 2024 District Court civil commencement fee is \$120; confirm the current amount. Justice, Municipal and City Court fees differ: ask that court; do not use the District Court fee automatically. You are responsible for other costs, including background records. The CRISS request has no fee.

IF UNABLE TO PAY: obtain the published Statement of Inability to Pay Court Costs and Fees at <https://www.montanalawhelp.org/resource/statement-inability-pay-court-costs-and-fees-interactive-form> and follow the clerk instructions. Its non-commercial-use restriction means this packet links to it; it does not reproduce, convert or rewrite it. No ER-100, ER-200, DS-100 or DS-200 is reproduced.

REVIEW FORM B: confirm your identity, sentencing court, enumerated offense, conviction date and current sentence posture. Leave the new Case No. blank; the clerk assigns it (OCA instructions step 4). The original conviction case number is shown in the intake for record matching. Complete the remedy election and eligibility narrative yourself after any needed legal help. These have different consequences; this packet does not choose a legal outcome or write your eligibility argument. Other/unlisted offenses, uncertain conduct classification or unresolved remedy consequences require legal assistance. Select the actual attachment and hearing boxes yourself. Present the hearing election as Form A does. Do not assume the completed-sentence no-hearing default applies here. Any request for a hearing is an adopted self-help STOP.

SIGN AND SERVE: the court will not consider an unsigned petition. Sign and date Form A; print your full name. No notarization is identified on its face. Serve a copy of the petition and filed attachments upon the COUNTY ATTORNEY FOR THE COUNTY WHERE YOU FILE. OCA Certificate of Service specifies U.S. mail and/or email: confirm the actual recipient and address with that office before service. Complete and sign/date the certificate only after actual service, with or before filing. The certificate is required with the petition; the generator never certifies service or pre-fills its execution date.

FILE THE COMPLETE SET: Form A, actual DOJ criminal record, executed Certificate of Service, proposed order and any additional confirmed attachments. The judgment and current sentencing order are required supporting court documents. The proposed order leaves every judicial finding, decision, hearing/opposition box, order date and judge signature blank. Only the court decides these. Keep file-stamped copies and verify clerk acceptance. Do not file this synthetic diagnostic packet.

COURT RESPONSE AND PUBLIC SAFETY: OCA instructions give the county attorney 21 days to respond in opposition. Under MCA 16-12-113(2), the court presumes the criteria unless the county attorney provides a reasonable basis otherwise. Even if the criteria are met, the court may refuse relief where granting it would pose an unreasonable risk of danger to public safety. Any plausible public-safety issue, opposition or requested hearing requires attorney handoff. Do not assume the subsection (7) completed-sentence no-hearing default controls this currently-serving petition. Follow actual court notices and confirm procedure with the sentencing clerk.

AFTER AN EXPUNGEMENT ORDER: the order alone does not complete DOJ deletion. Obtain the original or certified judgment and court expungement order. The separate CRISS unit is generated ONLY when the actual outcome is EXPUNGEMENT and that order is received; it is not generated merely because relief was requested. Complete the marijuana request type, review your facts and charges, sign/date the DOJ form, attach the required original/certified court documents, and mail to Montana DOJ CRISS, 2225 11th Avenue, PO Box 201403, Helena, MT 59620-1403. The marijuana request does NOT require an FD-258 fingerprint card; do not copy the misdemeanor fingerprint requirement. There is no CRISS request fee. Keep copies and mailing proof and verify DOJ processing by obtaining/checking the updated criminal record.

RESENTENCING IS DIFFERENT: resentencing changes the sentence and leaves a conviction; it does not expunge the record and has no DOJ deletion-request stage. Only an actual expungement outcome triggers the separate CRISS form. MCA 16-12-113(3)-(4) requires credit for time served, prohibits supervision after resentencing, prohibits a term longer than the original sentence, and prohibits reinstatement of charges dismissed under a negotiated plea agreement. Any computation or choice of remedy is for legal assistance; this packet calculates nothing and writes no public-safety argument. Form A uses misdemeanor and civil-infraction resentencing elections; resolve the actual election personally with any needed legal assistance.

TERMS AND LIMITS: expungement is not removal, redesignation or resentencing. DOJ expungement deletes the specified criminal-history record; do not promise destruction of every agency/court copy or permission to deny a conviction. Follow the order and verify any required notice/copies to the arresting agency, prosecutor and clerk; do not stop after receiving the signed order. Whether a cleared record may lawfully be denied is a hard self-help STOP. MMRTA relief does not disqualify a later misdemeanor-expungement petition under MCA 16-12-113(12); that is a separate route with separate requirements.

REQUIRED SELF-HELP STOPS

STOP: Any participant who is currently incarcerated. Custody status alone is an attorney-handoff trigger for this track.

STOP: Any case where the public-safety override is plausibly in play.

STOP: Any resentencing computation.

STOP: Any uncertainty about whether the historical conduct is now permitted or now punishable by a lesser sentence.

STOP: Any offence not on the OCA form's enumerated list.

STOP: Any county attorney opposition.

STOP: Any request for a hearing.

STOP: Any noncitizen participant.

STOP: Any choice between expungement and resentencing where the consequences differ.

THIS FIXTURE'S CONDITIONAL STAGE

No received expungement order is present. The DOJ deletion form is not included. A request for expungement alone does not trigger the post-order unit. Resentencing never triggers this deletion unit.

MANUAL PROTECTED INPUTS

Your remedy election, eligibility narrative, hearing election and actual attachments remain blank on Form A. They must be personally resolved/completed before filing; the generator does not select legal consequences or manufacture testimony. Court/prosecutor decisions and all execution fields remain blank.